

II

(Non-legislative acts)

REGULATIONS

COMMISSION REGULATION (EU) No 1129/2011

of 11 November 2011

amending Annex II to Regulation (EC) No 1333/2008 of the European Parliament and of the Council by establishing a Union list of food additives**(Text with EEA relevance)**

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EC) No 1333/2008 of the European Parliament and of the Council of 16 December 2008 on food additives⁽¹⁾, and in particular Article 10, Article 30(1) and Article 30(5) thereof,

Whereas:

- (1) Regulation (EC) No 1333/2008 provides for the establishment of a Union list of food additives approved for use in foods and their conditions of use.
- (2) Food additives which are currently permitted for use in foods under European Parliament and Council Directive 94/35/EC of 30 June 1994 on sweeteners for use in foodstuffs⁽²⁾, European Parliament and Council Directive 94/36/EC of 30 June 1994 on colours for use in foodstuffs⁽³⁾ and European Parliament and Council Directive 95/2/EC of 20 February 1995 on food additives other than colours and sweeteners⁽⁴⁾, should be included in Annex II to Regulation (EC) No 1333/2008 after a review of their compliance with Articles 6, 7 and 8 thereof. The review should not include a new risk assessment by the European Food Safety Authority (hereinafter 'the Authority'). Food additives and uses which are no longer needed shall not be entered in Annex II to that Regulation.
- (3) Only food additives included in the Union list set out in Annex II to Regulation (EC) No 1333/2008 may be

placed on the market and used in foods under the conditions of use specified therein. The additives should be listed on the basis of the categories of food to which they may be added. In order to facilitate the transfer and to enhance transparency of the authorisation procedure, it is appropriate to develop a new food categorisation system which will form the basis of Annex II.

- (4) The established Codex Alimentarius General Standard for Food Additives⁽⁵⁾, food category system has been used as a starting point for developing the Union system. However, that system needs to be adapted to take into account the specificity of the existing food additive authorisations in the Union. Current sector specific Union provisions on foods have been taken into account. The categories are created with the sole purpose of listing the authorised additives and their conditions of use.
- (5) For reasons of clarity it is necessary to list food additives in groups of additives for authorisation for certain foods. Guidance should be provided to describe the different categories in order to ensure uniform interpretation. When necessary, interpretation decisions can be adopted in accordance with Article 19 of Regulation (EC) No 1333/2008 in order to clarify whether or not a particular food belongs to a certain category of food.
- (6) Nitrites (E 249–250) are needed as a preservative in meat products to control the possible growth of harmful bacteria, in particular *Clostridium botulinum*. The use of nitrites in meat may however lead to formation of nitrosamines which are carcinogenic substances. The current authorisation of nitrites as food additives makes a balance between these effects, taking into account the scientific opinion of the Authority and the need to maintain certain traditional foods on the market. For some traditionally manufactured meat products maximum residual limits were set out in Annex III to

⁽¹⁾ OJ L 354, 31.12.2008, p. 16.⁽²⁾ OJ L 237, 10.9.1994, p. 3.⁽³⁾ OJ L 237, 10.9.1994, p. 13.⁽⁴⁾ OJ L 61, 18.3.1995, p. 1.⁽⁵⁾ GSFA, Codex STAN 192-1995.

Category number	E-number	Name	Maximum level (mg/l or mg/kg as appropriate)	Footnotes	Restrictions/exceptions
14.1.3	Fruit nectars as defined by Directive 2001/112/EC and vegetable nectars and similar products				
	Group I	Additives			only vegetable nectars, E 420, E421, E 953, E965, E 966, E 967 and E 968 may not be used
	E 200-203	Sorbic acid — sorbates	300	(1) (2)	only traditional Swedish and Finnish fruit syrups
	E 200-203	Sorbic acid — sorbates	250	(1) (2)	only traditional Swedish fruit syrups, maximum applies if E 210-213, benzoic acid — benzoates, have also been used is
	E 210-213	Benzoic acid — benzoates	150	(1) (2)	only traditional Swedish and Finnish fruit syrups
	E 270	Lactic acid	5 000		
	E 296	Malic acid	<i>quantum satis</i>		only traditional Swedish and Finnish fruit syrups
	E 300	Ascorbic acid	<i>quantum satis</i>		
	E 330	Citric acid	5 000		
	E 440	Pectins	3 000		only pineapple and passion fruit
	E 466	Carboxy methyl cellulose	<i>quantum satis</i>		only traditional Swedish and Finnish fruit syrups from citrus
	E 950	Acesulfame K	350		only energy-reduced or with no added sugar
	E 951	Aspartame	600		only energy-reduced or with no added sugar
	E 952	Cyclamic acid and its Na and Ca salts	250	(51)	only energy-reduced or with no added sugar
	E 954	Saccharin and its Na, K and Ca salts	80	(52)	only energy-reduced or with no added sugar
	E 955	Sucralose	300		only energy-reduced or with no added sugar
	E 959	Neohesperidine DC	30		only energy-reduced or with no added sugar
	E 961	Neotame	20		only energy-reduced or with no added sugar
	E 962	Salt of aspartame-acesulfame	350	(11)a (49) (50)	only energy-reduced or with no added sugar
		(11): Limits are expressed as (a) acesulfame K equivalent or (b) aspartame equivalent			
		(49): The maximum usable levels are derived from the maximum usable levels for its constituent parts, aspartame (E 951) and acesulfame-K (E 950)			
		(50): The levels for both E 951 and E 950 are not to be exceeded by use of the salt of aspartame-acesulfame, either alone or in combination with E 950 or E 951			

Category number	E-number	Name	Maximum level (mg/l or mg/kg as appropriate)	Footnotes	Restrictions/exceptions
		(51): Maximum usable levels are expressed in free acid			
		(52): Maximum usable levels are expressed in free imide			
14.1.4	Flavoured drinks				
	Group I	Additives			E 420, E421, E 953, E965, E 966, E 967 and E 968 may not be used
	Group II	Colours at <i>quantum satis</i>	<i>quantum satis</i>		excluding chocolate milk and malt products
	Group III	Colours with combined maximum limit	100	(25)	excluding chocolate milk and malt products
	E 160d	Lycopene	12		excluding dilutable drinks
	E 200-203	Sorbic acid — sorbates	300	(1) (2)	excluding dairy-based drinks
	E 200-203	Sorbic acid — sorbates	250	(1) (2)	maximum applies if E 210-213, benzoic acid — benzoates, have also been used is
	E 210-213	Benzoic acid — benzoates	150	(1) (2)	excluding dairy-based drinks
	E 220-228	Sulphur dioxide — sulphites	20	(3)	only carry over from concentrates in non-alcoholic flavoured drinks containing fruit juice
	E 220-228	Sulphur dioxide — sulphites	50	(3)	only non-alcoholic flavoured drinks containing at least 235 g/l glucose syrup
	E 220-228	Sulphur dioxide — sulphites	350	(3)	only concentrates based on fruit juice and containing not less than 2,5 % barley (barley water)
	E 220-228	Sulphur dioxide — sulphites	250	(3)	only other concentrates based on fruit juice or comminuted fruit; <i>capilé, groselha</i>
	E 242	Dimethyl dicarbonate	250	(24)	
	E 297	Fumaric acid	1 000		only instant powders for fruit-based drinks
		E 338-452	Phosphoric acid — phosphates — di-, tri- and polyphosphates	700	(1) (4)

Category number	E-number	Name	Maximum level (mg/l or mg/kg as appropriate)	Footnotes	Restrictions/exceptions
	E 338-452	Phosphoric acid — phosphates — di-, tri- and polyphosphates	500	(1) (4)	only sport drinks
	E 338-452	Phosphoric acid — phosphates — di-, tri- and polyphosphates	4 000	(1) (4)	only whey protein containing sport drinks
	E 338-452	Phosphoric acid — phosphates — di-, tri- and polyphosphates	20 000	(1) (4)	only vegetable protein drinks
	E 338-452	Phosphoric acid — phosphates — di-, tri- and polyphosphates	2 000	(1) (4)	only chocolate and malt dairy-based drinks
	E 355-357	Adipic acid — adipates	10 000	(1)	only powders for home preparation of drinks
	E 363	Succinic acid	3 000		only powders for home preparation of drinks
	E 405	Propane-1, 2-diol alginate	300		
	E 426	Soybean hemicellulose	5 000		only dairy-based drinks intended for retail sale
	E 444	Sucrose acetate isobutyrate	300		only cloudy drinks
	E 445	Glycerol esters of wood rosins	100		only cloudy drinks
	E 459	Beta-cyclodextrin	500		only flavoured powdered instant drinks
	E 473-474	Sucrose esters of fatty acids — sucroglycerides	5 000	(1)	only aniseed-based, dairy-based, coconut and almond drinks
	E 473-474	Sucrose esters of fatty acids — sucroglycerides	10 000	(1)	only powders for the preparation of hot beverages
	E 481-482	Sodium and Calcium stearoyl-2-lactylates	2 000	(1)	only powders for the preparation of hot beverages
	E 900	Dimethyl polysiloxane	10		
	E 950	Acesulfame K	350		only energy-reduced or with no added sugar
	E 951	Aspartame	600		only energy-reduced or with no added sugar
	E 952	Cyclamic acid and its Na and Ca salts	250	(51)	only energy-reduced or with no added sugar
	E 954	Saccharin and its Na, K and Ca salts	80	(52)	only energy-reduced or with no added sugar
	E 954	Saccharin and its Na, K and Ca salts	100	(52)	only “gaseosa” energy-reduced or with no added sugar
	E 955	Sucralose	300		only energy-reduced or with no added sugar
	E 959	Neohesperidine DC	30		only energy-reduced or with no added sugar, except milk and milk derivative based flavoured drinks